

HOUSE BILL 2088

By Powers

AN ACT to amend Tennessee Code Annotated, Title 63
and Title 68, relative to health care.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 11, Part 2, is amended by adding the following as a new section:

(a) A nurse is not required to hire staff or maintain an office in order to qualify for licensure as a home care organization licensed by the health facilities commission if the requirements in subsection (b) are met.

(b) If a nurse does not hire staff or maintain an office, then the nurse must submit a request to the department of health for space at a location deemed appropriate by the department to securely store patient records. The department of health shall provide such space upon request by a nurse.

(c) As used in this section, "nurse" means a person who is a licensed registered nurse, licensed practical nurse, or certified nursing assistant who provides home health services under a licensed home care organization to four (4) or less patients.

(d) The department of health is authorized to promulgate rules to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.